

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOSE IGNACIO PEREZ BARRERA,

Petitioner

VS.

VERONICA JIMENEZ GUITRON,

Respondent

) Case Number: FDI-21-795484

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: MOTION TO BIFURCATE MARITAL STATUS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Jose Ignacio Perez Barrera (Husband) and Respondent Veronica Jimenez Guitron (Wife). There are no minor children subject to this proceeding.
- 2) On 5/29/26, Wife filed a Request for Order seeking bifurcation and termination of marital status.
- 3) Wife did not file a Proof of Service indicating that her 5/29/26 Request for Order was served on Husband.
- 4) Wife's Request for Order does not include mandatory form FL-315 (Request for Separate Trial).
- 5) Husband did not file a Responsive Declaration.
- 6) At the prior 7/14/26 hearing, the Court continued the matter to 8/20/26 for the following reasons:
 - a. Wife's 5/29/26 Request for Order was not served at least 16 Court days prior to the hearing date as required by Code of Civil Procedure section 1005(b).
 - b. Wife must file mandatory form FL-315 (Request for Separate Trial) before her Request for Order seeking bifurcation and termination of marital status can be adjudicated.

- 7) On 7/31/26, Wife filed an amended Request for Order seeking bifurcation and termination of marital status attached to which is form FL-315 (Request for Separate Trial).
- 8) Wife did not file a Proof of Service indicating that her 5/29/26 Request for Order or 7/31/26 amended Request for Order were served on Husband.
- 9) Husband did not file a Responsive Declaration.

B. Findings and Order

- 1) The Court finds that Wife's 7/31/26 amended Request for Order was not served at least 16 Court days prior to the hearing date as required by Code of Civil Procedure section 1005(b).
- 2) As such, this matter is continued to 10/15/26 at 9 AM in Department 403.
- 3) At least 16 Court days prior to the next hearing date, Wife shall serve on Husband the (a) 7/31/26 Request for Order, (b) Continuance Order contained herein, and (c) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure (i.e., a person over the age of 18 shall mail the documents to Husband and then Wife shall file form FL-335 (Proof of Service) with the Court confirming service was effectuated).
- 4) At least 9 Court days prior to the next hearing date, Husband may file a Responsive Declaration.
- 5) At least 5 Court days prior to the next hearing date, Wife may file and serve a Reply Declaration.
- 6) Wife is encouraged to seek assistance from the ACCESS Center. Information for contacting the ACCESS Center can be found here: <https://sf.courts.ca.gov/access-legal-self-help-center>.
- 7) The Court will prepare the Findings and Order After Hearing.